

An Act

ENROLLED SENATE
BILL NO. 1565

By: Stanley and Boren of the
Senate

and

Gise of the House

An Act relating to the state Medicaid program; defining term; establishing certain powers and duties of the Oklahoma Health Care Authority for the purpose of participation in the Transforming Maternal Health (TMaH) Model; limiting use of certain funds; requiring inclusion of nutrition support services; requiring and authorizing certain additional services subject to specified condition; requiring submission of certain final report; providing for codification; providing an effective date; and declaring an emergency.

SUBJECT: Maternal health services

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 5009.8 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. As used in this section, "Transforming Maternal Health (TMaH) Model" means a payment and service delivery model developed by the Centers for Medicare and Medicaid Services (CMS) Center for Medicare and Medicaid Innovation, as detailed in the CMS notice of funding opportunity issued on June 26, 2024, that:

1. Supports participating state Medicaid agencies in the development of a whole-person approach to pregnancy, childbirth, and postpartum care; and

2. Aims to improve outcomes and experiences for mothers and babies, while also reducing overall program expenditures, by addressing the physical, mental health, and social needs experienced during pregnancy.

B. For the purpose of participation in the Transforming Maternal Health (TMAH) Model, the Oklahoma Health Care Authority shall have the power and duty to accept, receive, and expend federal funds, grants, cooperative agreements, or demonstration model funding awarded by the Centers for Medicare and Medicaid Services (CMS), including funding made available through the TMAH Model, to improve maternal health outcomes for women eligible for the state Medicaid program. Such funds shall only be used to develop, administer, and contract for maternal health services and supports for pregnant and postpartum women who are Medicaid members.

C. Contingent upon federal approval and disbursement of additional federal funds for nutrition support services within the TMAH Model:

1. The services and supports described in subsection B of this section shall include nutrition support services to pregnant and postpartum women who have a diet-related condition or a condition or disease that may contribute to a high-risk pregnancy or birth complications, to maintain proper health and achieve healthy birth outcomes;

2. Nutrition support services described in this subsection shall include medically tailored home-delivered meals. Medically tailored home-delivered meals shall be designed by a Registered Dietitian Nutritionist using evidence-based nutritional standards to meet the specific medical and nutritional needs of the individual based on the specific disease or condition being managed, and shall be palatable and appealing in taste and texture to promote adequate intake; and

3. Nutrition support services described in this subsection may include nutritional counseling; provided, that the Authority shall

not require a Medicaid member to undergo nutritional counseling as a condition of receiving medically tailored home-delivered meals.

D. The Authority shall electronically submit a final report to the Governor, the President Pro Tempore of the Senate, and the Speaker of the House of Representatives after the conclusion of the TMaH Model. The report shall summarize the services rendered under the TMaH Model, detail financial information, report measurable outcomes for the populations served, and evaluate the performance of the program.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 26th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 29th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____